MISHNEH TORAH — TISHREI

The Misvah Is to Hear, Not to Blow: The Rambam on Shofar & Shabbat

Hilchot Shofar Perek 2

Sefer: Mishneh Torah (Rambam), **Sefer Zemanim — Hilchot Shofar** (three chapters only)

Perek: 2 (with a note on Perek 3)

Topic: Who is obligated in shofar; that the mitzvah is **to hear**, not to blow; who can be *motzi* whom; kavanah in mitzvot; and why the shofar is not blown when Rosh Hashanah falls on Shabbat

Schedule note: First Thursday halachah shiur back, just before **Erev Rosh Hashanah**. We have been learning **Hilchot Shabbat** for the last few years and are around **siman 320** — that now pauses for a few weeks while we learn the yamim tovim **from the Rambam**: Rosh Hashanah tonight, **Hilchot Yom Kippur next week**, and **Sukkot** the week after. In past years these halachot were learned from the Shulchan Aruch; the Rambam is what's wanted this year.

Why Perek 2: Perek 1 is important but largely technical and less practical — a shofar up a tree, what the shofar may be made from, a shofar belonging to a non-Jew, a cracked or broken shofar. Perek 2, which deals with **hearing and blowing the shofar and who is obligated**, is the practical chapter.

Halachah 1 — Who Is Obligated

הכל חייבין לשמוע קול שופר: כהנים, לויים, וישראלים, וגרים, ועבדים משוחררים. אבל נשים ועבדים וקטנים פטורין. ומי שחציו עבד וחציו בן חורין, וטומטום ואנדרוגינוס — חייבין.

The central point: the mitzvah is to hear, not to blow

The Torah says **יום תרועה** / **זכרון תרועה** — a day of *blowing*. And yet the Chachamim interpreted the mitzvah **not as the blowing but as the hearing** — and this is how the Rambam codifies it, and all subsequent poskim after him. **The obligation is לשמוע.** Of course you must blow in order for there to be something to hear; but the mitzvah itself is the hearing.

Three practical ramifications:

1. **The berachah.** We do not say *litkoa*; we say **אשר קדשנו במצוותיו וציוונו לשמוע קול שופר**.
2. **Blowing into a pit.** If the shofar is blown in a pit, the listener has **not** fulfilled the mitzvah — he heard only the **echo** of the blast, not the sound of the shofar. You performed an act of blowing; he did not hear a shofar.
3. **No preference to do it yourself.** Elsewhere in halachah there is a concept that it is better to perform a mitzvah personally than through an agent. **Here that does not apply at all.** Even if you know how to blow, there is no preference to blow for yourself at home — because the mitzvah is not blowing. Having heard it, **you have fulfilled exactly the same mitzvah, at**

exactly the same level, as the person blowing. (This carries a further and sharper implication in Halachah 3.)

The categories

- **Women** — exempt, as with all **mitzvot aseh shehazman gerama**. There is a mitzvah/value in their hearing it even though they are not obligated, but **per the Rambam a woman does not recite the berachah**, since it is something she is exempt from. (An old debate.)

חציו עבד וחציו בן חורין — how a person comes to be in that state is a discussion for another time; but he is obligated, because **the half of him that is free must hear the shofar**.

טומטום — one whose genitalia are covered, so we do not know whether male or female → obligated **out of doubt**.

אנדרוגינוס — one with both male and female genitalia → obligated **out of doubt**.

Halachah 2 — Who Can Be Motzi Whom

כל מי שאינו חייב בדבר, אינו מוציא את החייב ידי חובתו. לפיכך אישה או קטן שתקעו בשופר — השומע מהן לא יצא. אנדרוגינוס מוציא את מינו ואינו מוציא את שאינו מינו. טומטום אינו מוציא לא את מינו ולא את שאינו מינו, שהטומטום שנקרע אפשר שיימצא זכר אפשר שיימצא נקבה.

An important distinction: "not obligated" vs "already fulfilled"

Someone who heard all hundred blasts in shul is **no longer obligated today** — may he go and blow for a man in hospital? **Of course he may.** When the Rambam writes **כל מי שאינו חייב בדבר**, he means someone who is not a **bar chiyuva** — not within the category of the obligated at all. A man who has already discharged his obligation today is still, in essence, an obligated person: tomorrow is the second day, and next year he will be obligated again. Contrast a **woman**, who will never be obligated, and a **child**, who is not obligated until he is no longer a child — a different person, halachically.

- **A woman may certainly blow for other women** — nothing precludes it, since they share the same level of obligation. **A woman need not hear the shofar from a man.**
- **Androginos** — may be motzi **only another androginos**. Why? Because the Gemara (in one view) treats the androginos as **a distinct category of person** — a *beriah bifnei atzmah*. *(The Rabbi's contemporary comparison: much as one hears today of male, female, and non-binary — here too there is male, female, and a third category.)* Two androginosim share one and the same status, so one can discharge the other's obligation.
- **Tumtum** — may be motzi **no one at all, not even another tumtum**. Because a tumtum is not a category but a **state of ignorance**: were each of them opened up, one might turn out male and the other female — and a female cannot be motzi a male.

Can a tumtum blow for himself? Obviously yes: if he is male, a male has blown and heard; if female, she was never obligated in the first place.

Halachah 3 — The Half-Slave, and the Proof of the Whole Principle

וכן מי שחציו עבד וחציו בן חורין — אינו מוציא אפילו את עצמו, שאין צד עבדות שבו מוציא צד חירות שבו. אלא כיצד ייצא ידי חובתו? שישמע מבן חורין שיתקע לו.

He cannot discharge **his own** obligation, because the slave-side of him — which is not obligated, like a woman — cannot produce a shofar-sound that discharges the free side of him.

The four levels

Level	Who	Can be motzi others?	Can be motzi himself?
1	**A man**	Yes — anyone	Yes
2	**Androginos**	Only another androginos	Yes
3	**Tumtum**	No one	Yes
4	**חציו עבד וחציו בן חורין**	No one	**No** — must hear from a free man

The Rabbi's question — and the answer that proves the chapter's premise

How does hearing from someone else help him? Every part of him is half-slave; half his *ear* is hearing through a slave's receptacle!

The answer returns to Halachah 1: the mitzvah is to hear, not to blow. The blower is not performing the mitzvah — he is **causing** it to be performed by producing a sound to be heard. So when the half-slave blows for himself, the sound emerging from the instrument comes from someone **only half obligated**, and hearing such a sound cannot discharge the obligation. But when he hears from a **fully obligated** man, the sound is fully valid — and whatever part of him is obligated has now heard it and is discharged.

This is the clearest demonstration in the chapter that the essence of the mitzvah is לשמוע קול שופר.

Homiletically (a whole derashah could be built on this): the mitzvah is not to blow but to **hear** — and *shomea* in Hebrew means to **receive**, to let something sink in; it also carries the sense of **to understand**. The mitzvah is to *understand* the sound of the shofar.

Halachah 4 — Kavanah

המתעסק בתקיעת שופר להתלמד — לא יצא ידי חובתו, וכן השומע מן המתעסק לא יצא.

Someone merely **practising** has not fulfilled the mitzvah, and neither has one who hears from him — even though the correct sounds were produced — because he never made a conscious decision to perform the mitzvah.

Shitat HaRambam: מצוות צריכות כוונה

The Rambam evidently holds — here and in what follows — that **mitzvot require intention**, at least mitzvot **de'oraita**. This is a major debate, but this chapter is a clear indication of his position.

The famous contradiction — matzah

אכל מצה בלא כוונה, שאנסוהו עכו"ם — יצא ידי חובתו (Hilchot Chametz U'Matzah)

If mitzvot require kavanah, how can force-feeding discharge the mitzvah?

Answer 1 — the Maggid Mishneh (which the Rabbi finds difficult): he was forced, but **he knew it was Pesach and he knew this was matzah** — so there was kavanah even while being coerced.

The Shulchan Aruch follows this in Hilchot Pesach: **אכל מצה בלא כוונה, כגון שאנסוהו לסטים — יצא**, provided he knows it is Pesach, knows it is matzah, and knows he is obligated. If he thought it was an ordinary day, or did not realize it was matzah, he has not fulfilled it.

Answer 2 — Rabbeinu Nissim (the Ran), and the Kesef Mishneh — the Rabbi's preferred approach. To understand it, an important principle:

Excursus: meizid / shogeg / mitasek

Using Shabbat as the model:

Category	Definition	Consequence
Meizid	I knowingly and deliberately transgress	Full liability
Shogeg	Inadvertent — either I did not know it is forbidden, or I did not realize it is Shabbat	**Korban**
Mitasek	I did not even know what action I was performing — leaning back onto a light switch and switching it on; uprooting grass while walking	**Patur** — no korban at all

But mitasek is not always exempt. In **forbidden foods** and **arayot**, a mitasek **still requires kapparah** — because he **benefited**; the substance was ingested, the act was consummated. (Someone who does not know the fat before him is forbidden fat, or knows the fat but not that it is forbidden, is *shogeg* and brings a korban. Someone who has it poured down his throat without knowing what it is, or eats it while dreaming, is *mitasek* — and still requires kapparah, because his body ingested it. Likewise one who is pushed into forbidden relations.)

And so with matzah

Even holding **מצוות צריכות כוונה**, says the Ran: with **shofar**, hearing requires intention to hear, and there is nothing more to the act. But with **matzah**, the act of **ingestion is itself sufficient** — just as with forbidden fats and forbidden relations, where the substance becoming part of your body carries consequence without kavanah. **So the Rambam's ruling on matzah is not a contradiction; matzah is the exception, for either of these reasons — he knew it was Pesach and matzah, or, better, because ingestion suffices.**

Mutual kavanah — blower and listener

> **נתכוון שומע לצאת ידי חובתו ולא נתכוון התוקע להוציאו, או שנתכוון התוקע להוציאו ולא נתכוון השומע לצאת — לא יצא ידי חובתו, עד שיתכוונו שניהם.**

Both must intend — the listener to fulfil, the blower to discharge him.

A practical note — the Magen Avraham, 400 years ago: the very fact that you have **come to shul on Rosh Hashanah**, and come **for the shofar**, and are standing for the berachah, is itself sufficient kavanah. **You do not have to positively think "I am now fulfilling the mitzvah."** The modern practice of someone announcing "everyone have in mind to be yotzei" is, in the Rabbi's words, very nice — but superfluous.

Halachah 5 — Blowing for Whoever Hears

מי שתקע ונתכוון להוציא כל השומע תקיעתו, ושמע השומע ונתכוון לצאת ידי חובתו — אף על פי שאין התוקע מתכוון לזה פלוני ששמע תקיעתו ואינו יודעו — יצא, שהרי נתכוונו שניהם.

לפיכך מי שהיה מהלך בדרך או יושב בתוך ביתו ושמע תקיעות משליח ציבור — יצא אם נתכוון לצאת, שהרי שליח ציבור מתכוון להוציא את הרבים ידי חובתן.

Even though the blower has no idea this particular person exists or is listening — his blanket intention "for **anyone** who hears me," plus the listener's intention to fulfil, is enough.

The Rambam writes elsewhere that one **appointed** to perform a mitzvah on behalf of others carries a **chazakah** of intending it for anyone: unless he thinks or states otherwise, the presumption is that a person blowing shofar is blowing on behalf of all who hear.

Practically:

- Someone **ill at home** who lives close enough to the shul to hear the blasts can fulfil the mitzvah from his bed — the fact that the blower has no idea there is a person next door is irrelevant. *(The Rabbi has known someone for whom this was actually relevant.)*
- Someone **walking past** a shul, who had not intended to attend that day, who stops, hears, and has it in mind — **has fulfilled the mitzvah.**

So far: Halachot 1–3 dealt with categories of people; Halachot 4–5 with intention. The chapter now turns to Shabbat.

Halachah 6 — Why We Do Not Blow When Rosh Hashanah Falls on Shabbat

Directly relevant this year, since the first day of Rosh Hashanah falls on Shabbat.

יום טוב של ראש השנה שחל להיות בשבת — אין תוקעין בשופר בכל מקום. אף על פי שהתקיעה משום שבות ומן הדין היה שיתקעו, יבוא עשה של תורה וידחה שבות דבריהם.

First, what the reason is not

There is a rabbinic prohibition on **playing or sounding any musical instrument on Shabbat** — **גזירה שמא יתקן כלי שיר** — and a shofar is a musical instrument. **But that is not the reason we don't blow.** Were that the only obstacle, we would say the **mitzvat aseh from the Torah overrides the rabbinic shevut**.

The actual reason

גזירה שמא ייטלנו בידו ויוליכנו למי שיתקע לו, ויעבירנו ארבע אמות ברשות הרבים, או יוציאנו מרשות לרשות — וזה סקילה. שהכול חייבין בתקיעה ואין הכול בקיאין לתקוע.

The decree is against **carrying** — that a person will pick up the shofar and take it to someone who can blow for him, carrying four amot in a reshut harabim or transferring between domains, which is a **capital-level Shabbat violation**. And this is a live risk precisely because **everyone is obligated but not everyone knows how to blow**.

The commentators' question — the shofar up the tree

In **Perek 1** (and explicitly in the Mishnah, with no dispute) the Rambam rules: it is the first day of Rosh Hashanah on a weekday, and your only shofar is **up a tree**. May you climb up and get it? **You may not** — even though blowing is a mitzvah de'oraita and climbing a tree on yom tov is

only derabbanan. (You may engage a non-Jew — **שבות דשבות במקום מצווה** — but assume there is none and no other shofar.) **So we do *not* always say the aseh overrides a derabbanan.** Why then invoke that principle here?

The answer: the principle applies where **there was no alternative**. With the shofar in the tree there *was* a possibility, at least theoretically — you could have retrieved it before yom tov. But when **Rosh Hashanah coincides with Shabbat there is nothing whatsoever that could have been done**; on that reasoning the aseh certainly *would* override the shevut on musical instruments — hence the need for the separate decree about carrying.

Rav Kappach's observation — the Rambam departs from the Gemara

The **Gemara** gives the reason as: you will carry the shofar to a **baki**, an expert, **to teach you how to blow**. The **Rambam** instead writes that you will carry it to **someone to blow for you**. Why the change? Perhaps because he felt it unlikely that a person would actually learn to blow on the day — and he wanted the **more common** scenario: you know someone who can blow, he doesn't happen to have a shofar with him, so you carry yours to him.

The Rabbi's reflections on the severity of carrying

Consider what this halachah means: **the entire Jewish world forgoes hearing the shofar** because of the concern that a tiny fraction of the population might carry — and this in an era when many communities have an **eruv**. It is a striking demonstration of the seriousness of Shabbat, and of **hotza'ah** in particular.

Tosafot at the beginning of **Masechet Shabbat** already notes the oddity that the masechet opens with the laws of **carrying** and the four domains — when carrying is the **penultimate** melachah, the thirteenth in order. Why open there? Because **people have always treated carrying as though it were not really forbidden.** You know people — as does everyone — who consider themselves fully shomer Shabbat, who would never use electricity, drive, or cook, but who carry a handkerchief or their keys in their pocket, thinking: *what's wrong with that?* That attitude existed then too — and precisely because of it, a person might well pick up the shofar and carry it.

The Ran's striking suggestion

Rabbeinu Nissim offers a theoretical point (which others dispute). Really, he says, the Chachamim would **never** have cancelled everyone's mitzvah for the sake of the few who might err inadvertently. **But** in their time nobody knew for certain which of the two days was the real Rosh Hashanah — so blowing on any given day was only a **safek mitzvah de'oraita**, and for a mere doubt, yes, it is worth forgoing to prevent carrying.

He asks on himself: then why did they not blow in **Yerushalayim** and its surroundings, where the true day *was* known? **Answer:** they did not want a split practice — some places blowing, others not.

And today, when we know exactly when Rosh Hashanah is? **The halachah is long established and is not changed** — but it is an interesting thing to sit with.

Halachah 7 — Children Practising

(Based on the Mishnah in Rosh Hashanah, perek 4.)

התינוקות שלא הגיעו לחינוך — אין מעכבין אותן מלתקוע בשבת של יום טוב של ראש השנה שחל להיות בו... ומותר לגדול שיתעסק עמהן כדי ללמדן ביום טוב, בין קטן שהגיע לחינוך בין קטן שלא הגיע — שהתקיעה משום שבות.

Children below the age of chinuch are **not stopped** from blowing — certainly on Rosh Hashanah, but **even on an ordinary Shabbat**. If you see a five- or six-year-old walking around blowing a shofar, **do not stop him**: it is a good thing that he learns and practises. *(The Rabbi's own almost-four-year-old goes round blowing his toy shofar constantly — and even with a real shofar it would be fine.)*

And an adult may even help train them — but note carefully what that means: **verbal** guidance only. *"That was a good sound — can you do it again? That one should be a bit shorter."* **You may not take the shofar in your own hand and blow it** to demonstrate. All of this is permitted because the prohibition on blowing is only a **shevut**.

The practical corollary — blowing "for fun"

Since blowing is really forbidden as a musical instrument and is only permitted **for the sake of the mitzvah**, **many poskim rule that once the quota of blasts (100/101) is complete, one may not blow again.** Someone comes over and says "I want to see if I can blow" — on Rosh Hashanah falling on a weekday, or any day — **you should not give it to him**: the mitzvah is done, and the rabbinic prohibition on musical instruments is back in force.

Exception: blowing **for women** is fine — there is no obligation but there is still a mitzvah in their hearing it, and that suffices to override the shevut.

A rejected opinion held that once blowing is permitted at all on the day, one may blow as much as one likes — 200, 300, 400 blasts, all part of the mitzvah. **That view was not accepted.**

This was the answer to the poll the Rabbi posted in the daily halachah group that morning: no, you may not — **unless you are doing it for your wife.**

Halachah 8 — Where the Decree Did Not Reach: Temple Times

כשגזרו שלא לתקוע בשבת, לא גזרו אלא במקום שאין בו בית דין. אבל בזמן שבית המקדש קיים והיה בית דין הגדול בירושלים — היו הכול תוקעין בירושלים כל זמן שבית דין יושבין.

Two conditions together: the **Beit HaMikdash standing** *and* the **Sanhedrin sitting in Jerusalem** (recall that there were periods when the Sanhedrin sat elsewhere — Yavneh, Usha).

And **not only the people of Jerusalem**:

> **אלא כל עיר שהיא בתוך תחום ירושלים** — within the techum (2,000 amot), **והיא רואה את ירושלים** — and can see Jerusalem, **לא שהיא בתוך הנחל**, not sunk in a valley — and **והיא שומעת קול ירושלים**, not perched high on a mountain, looking down — is near enough to hear it, **ולא שהיא בראש ההר**, but out of earshot — and can walk in **ויכולה לבוא לירושלים**, with no **לא שיש נהר מפסיק ביניהם** river cutting them off.

אנשי אותה העיר תוקעין... אבל בשאר עיירות אין תוקעין.

Why? Because of the **eimah** — the awe of the Sanhedrin sitting there. And note: this was not restricted to blowing *before* the beit din. **Every small shul fifteen hundred amot outside Jerusalem blew**, because the presence of the Sanhedrin radiated outward and no one would come to carry.

A note on "Yerushalayim": as we have discussed in the past, this means Jerusalem **proper** — roughly the Old City, up to Sha'ar Yafo and Sha'ar Shechem. Not Har Nof, not Sorotzkin, not the modern neighbourhoods.

Halachah 9 — Nowadays: Rabban Yochanan ben Zakkai's Takanah

ובזמן הזה שחרב בית המקדש כל מקום שיש בו בית דין קבוע — Rabban Yochanan ben Zakkai instituted that tokin.

The Rambam's conditions, stacked:

a **fixed, permanent, established** beit din. Not three men who assemble ad hoc — **בית דין קבוע** (of the sort one sees today with certain conversion batei din).

והוא שיהיו בארץ ישראל — in Eretz Yisrael.

3. **With proper semichah** — dayanim genuinely ordained in the unbroken chain. **We do not have this today.** (There were attempts to re-establish semichah — famously in the 1500s — which we have discussed; in practice it does not exist today.)

and specifically a beit din with the standing — **ואין תוקעין בשבת אלא בבית דין שקידשו את החודש** to **sanctify the new moon**. Semichah alone is not enough; **אבל שאר בתי דינין אין תוקעין בהן אלא אם כן היו סמוכין**.

and only **in the presence of the beit din**, — **ואין תוקעין אלא בפני בית דין בלבד, כל זמן שיושבין** while they sit. **אפילו ננערו לעמוד — תוקעין בפניהם**; even if they have risen to their feet it is fine. **אבל חוץ לבית דין אין תוקעין.**

ולמה תוקעין בפני בית דין? מפני שבית דין זריזין הן, ולא יבואו התוקעין להעבירו ארבע אמות בפניהם, שהרי בית דין עומדין עליהם.

Note the contrast with Halachah 8: in Temple times the Sanhedrin's presence covered the **entire city and its surroundings**, whatever the local shul. Post-churban, the permission is confined **to the beit din's own presence** — three dayanim, but *samuch* dayanim, and only where they are.

The machloket

View	Requirement	Consequence
Rashi (one extreme)	A beit din of **71** — the Sanhedrin	Effectively never applies
Rambam	**Three**, but with genuine **semichah** and the standing to sanctify the month, and only in their presence	Does not apply today, for lack of semichah
Rif (other extreme)	**Three**, even without full semichah	And it is well recorded that **Rabbi Yitzchak Alfasi himself blew the shofar in his beit din on Shabbat Rosh Hashanah**

There have been attempts through the ages to revive the practice in cities with batei din, **but the accepted practice has been as the Rambam writes** — and since we have no semichah today, it does not apply.

A participant asked: what about a beit din of 23? **Yes, all the more so** — if three suffices, twenty-three certainly does. **But the same characteristics are required**: semichah, and the standing to sanctify the month. Which is precisely the problem today: take twenty-three of today's dayanim, or even seventy-one, and it means nothing — **because each one individually is "zero"**, lacking semichah. And even then it would only work **in the presence of the dayanim** — you would have to go to the beit din itself.

Halachah 10 — The Two Days of Golus

בזמן הזה שאנו עושין שני ימים בגלות — כדרך שאנו עושין בראשון כך עושין בשני. ואם חל יום ראשון להיות בשבת ואין תוקעין במקום בית דין — הרי אלו תוקעין ביום שני בלבד.

Exactly our situation this year: day one falls on Shabbat, so **we blow only on the second day**.

One difference the Rambam does not write here but held elsewhere: that **shehecheyanu is not said on the second day**. **This year, however, we will say shehecheyanu** — since the shofar is first heard on day two.

Perek 3 — For Your Own Learning

Chapter 3 covers **how many blasts are required and how each blast is to be sounded**. It contains some **unique positions of the Rambam** and is beyond the scope of this evening — **learn it over Rosh Hashanah**.

Summary

The Torah speaks of *teruah*, but Chazal — and the Rambam after them — define the mitzvah as **hearing** the shofar: hence the berachah **לשמוע קול שופר**, hence a blast heard as an echo from a pit does not count, hence there is no virtue in blowing for oneself, and hence the half-slave cannot discharge even his own obligation but must hear from a free man. Only a **bar chiyuva** can be motzi others — so a woman or child cannot blow for a man (though a man who has already heard may blow for others, and a woman for women); an androginos only for another androginos; a tumtum for no one but himself. **Kavanah is required** on both sides, blower and listener — though the Magen Avraham holds that coming to shul for the shofar is itself sufficient intent — and a blanket intention "for whoever hears" covers the sick man at home and the passer-by in the street. Finally, when Rosh Hashanah falls on **Shabbat**, the shofar is silenced not because it is a musical instrument (the aseh would override that shevut) but out of the fear that someone will **carry** it to a person who can blow — a decree whose scope shows the gravity of hotza'ah, and which was lifted only in Jerusalem in Temple times and, post-churban, in the presence of a properly ordained beit din. **This year, day one being Shabbat, we blow only on the second day.**

Coming Up

- **Next week:** a chapter from the **Rambam's Hilchot Yom Kippur**, in anticipation of Yom Kippur.
- **The week after:** a chapter on **Sukkot**.
- Then back to **Hilchot Shabbat**, siman 320 onwards.

- **Perek 3 of Hilchot Shofar** — the number and form of the blasts — to be learned privately over Rosh Hashanah.

B'Ezrat Hashem

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